EMERGENCY FACILITY USE AGREEMENT
BETWEEN
THE COUNTY OF ORANGE
AND
THE CITY OF HUNTINGTON BEACH

This Emergency Facility Use Agreement (Agreement) is entered into as of April 20, 2020, by and between the County of Orange, a political subdivision of the State of California (Licensee), and the City of Huntington Beach, a California Charter Law city (City), for the use by Licensee of a specific facility or facilities (Facility) owned by or under legal control of City described in this Agreement to support Licensee's response to the COVID-19 emergency and pandemic. The Facility outlined in this Agreement shall be used for the establishment and creation of a temporary alternative shelter site (TASS) needed to prevent and control the COVID-19 emergency and pandemic and to protect and preserve the public health. The County and City may hereinafter be referred to sometimes individually as "Party" and collectively as "Parties."

This Agreement is conditional and contingent on finalization of certain FEMA-required terms and conditions, as expressly stated further herein.

1. **RECITALS**

a. **WHEREAS**, on February 26, 2020, the County declared a Local Emergency, and the County's Health Officer declared a Local Health Emergency in response to COVID-19 emergency and outbreak, as necessary for the preservation of public health and safety; and

b. **WHEREAS**, on March 4, 2020, Governor Gavin Newsom declared a State of Emergency in the State of California concerning the COVID-19 emergency and outbreak; and

c. **WHEREAS**, on March 12, 2020, Governor Gavin Newsom issued Executive Order N-25-20, ordering all California residents to heed any orders and guidance of State and local public health officials, including but not limited to imposition of social distancing measures, to control the spread of COVID-19;

d. **WHEREAS**, on March 16, 202, the City Council of the City of Huntington Beach declared a local emergency, in response to the COVID-19 emergency and pandemic; and

e. **WHEREAS**, on March 18, 2020, the President of the United States proclaimed a national emergency concerning the COVID-19 outbreak; and

f. **WHEREAS**, on March 22, 2020, the President of United States declared a major disaster exists in the State of California and ordered Federal assistant to supplement State and local recovery efforts in the areas affected by the COVID-19 pandemic; and

g. **WHEREAS**, the Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA) has issued the Public Assistance Program and Policy Guide, Third Edition, Version 3.1 (Guide) that provides guidance on the availability of federal funding to states and local governments during emergencies pursuant to Section 502 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (Stafford Act); and

h. **WHEREAS**, the Guide identifies sheltering as an eligible cost during emergencies; and

i. **WHEREAS**, Licensee is in need of certain facilities in order to support its efforts to respond to the COVID-19 pandemic and the requisite social distancing requirements in a manner consistent with the above declarations and authorities, and any continuing executive orders and declarations as part of the on-going emergencies; and

j. **WHEREAS**, the City has agreed to license to Licensee the use of real property located at 17631 Cameron Lane (Site) based on the agreed-upon consideration and other terms and conditions of use as set forth in this Agreement; and

k. **WHEREAS**, the City has authority to permit such a use on the Site, and is ready and willing to provide available support services as described below; and

l. **WHEREAS**, all provisions of this Agreement shall be read and construed in a manner that is consistent with the stated purpose herein; and

m. **WHEREAS**, it is expressly understood by the Parties that the City's purpose is to provide services to the residents of Huntington Beach, pursuant to the policies enacted by the City Council of the City of Huntington Beach, and that as its primary obligation is to as such, priority shall be given to Huntington Beach residents, and to all operations that support its primary purpose; and

n. **WHEREAS**, the Parties, therefore, understand and agree that, at such time that as the City, in its sole and unlimited discretion, deems it necessary to serve its primary purpose, the City may terminate this Agreement with 90-days advance notice, and that in the event of such termination, the Licensee agrees to return the Site to the City in a mutually agreed-upon condition.

NOW, THEREFORE, in consideration of the above recitals, and in consideration of the mutual covenants, benefits and promises contained herein, it is mutually agreed between the Parties, as follows:

2. FACILITY DESCRIPTION

a. Owner: City of Huntington Beach

b. Manager/Operator: City of Huntington Beach

c. Address: 17631 Cameron Lane, Huntington Beach, CA 92647 (APN: 167-472-08)

d. Name and specific licensed area of Facility, as outlined in Attachment A, incorporated herein by reference:
   i. Cameron Lane: Approximately 34,189 square feet of vacant land located at 17361 Cameron Lane

3. FACILITY USE

a. The City hereby licenses and permits Licensee by way of this revocable license to access the

Facility to construct and use as described in the following sections and subject to the terms and conditions detailed herein.

b. The Facility shall be used for the establishment and operation of a temporary alternative shelter site TASS needed to prevent and control the COVID-19 emergency and pandemic and to protect and preserve the public health. Use shall include staging areas, staff zones, transport access, and shelter space for home-challenged persons needing shelter and isolation due to the COVID-19 emergency and pandemic.

c. Home-challenged individuals who are COVID-19 positive or COVID-19 symptomatic will not be housed at the Facility.

d. Pursuant to this agreement, the City authorizes County, and its officers, employees, agents, invitees, other necessary parties, and persons needing TASS and related services, to access, occupy, and use the Facility solely for purposes of the ACS and COVID-19 emergency and pandemic-related non-congregate sheltering. Licensee shall be solely responsible for intake, tracking, and discharge of occupants; no "check-in/check-out" with the City shall be required. Daily occupancy census will be retained by the Licensee and provided to the City upon request.

e. Other than to the extent expressly stated herein, Licensee shall be solely responsible for the operation and servicing of the TASS and Facility. City shall not be responsible for provision of any medical care related to Licensee's use.

f. City acknowledges that Licensee's agents and other necessary third parties, including contractors and subcontractors, will support the operations and shall be allowed access to the Facility consistent with this Agreement.

g. Parties acknowledge that the Licensee's operational and other needs as to the Facility may vary, including based on developments as Licensee's response to the pandemic progresses. Additional facilities or services or uses of existing Facilities may be added to the scope of this Agreement or otherwise modified, and the parties agree to negotiate for such in good faith. In such event, all additional terms shall be memorialized in a written addendum to this Agreement that is signed by all Parties.

h. Licensee is approved to perform modifications to the Facility necessary to protect the health and safety of individuals receiving care on the Facility, as well as Licensee employees and all agents associated with the uses, if approved in advance by the City.

   i. In order to make the Facility functional and minimize risks in light of Licensee's intended use, Licensee shall work with the City to develop modifications, including grading, paving, lighting, security, and fencing at the Facility, and constructing a SPRUNG structure on the Facility with the necessary utility connections to operate said structure. Said modifications and needs shall be detailed in an Exhibit to be finalized between the parties based on operational needs, and said Exhibit will be attached hereto and incorporated as if stated herein.

ii. Upon termination of this Agreement, all modifications to the Facility, including the Site improvements and the SPRUNG structure, will be relinquished by the Licensee to the City.

i. Unauthorized use of the Facility will constitute a breach of the Agreement and may warrant immediate termination of the agreement. See Termination Section, below.

j. Loading and Unloading. Barriers, fences, or posts shall be placed and paid for by the Licensee at any location deemed necessary by City for safety and/or for any other reasons. The licensee is expected to adhere to all City policies related to the operation and parking of vehicles unless expressly authorized otherwise by the City.

4. FACILITY MANAGEMENT

a. Representatives

i. Licensee's Responsible Party: Licensee will designate a Licensee's Responsible Party (LRP) to serve as the individual in charge of and responsible for all of Licensee's activities and actions regarding the Facility. Each Party will provide notice as to name and contact information of the individuals above to other Party.

ii. City's Responsible Party: City will designate a City's Responsible Party (CRP) to coordinate with the Licensee's Responsible Party regarding facility use and provision of service.

iii. The LRP and the CRP will be responsible for communicating concerns and issues relating to use of the Facility. Best efforts shall be made for the LRP and CRP to be available as much as possible and shall have authority as otherwise allowed by law to make decisions regarding this Agreement that do not require an amendment or other formal written agreement signed by both Parties.

b. Operational Management

i. Licensee will be solely responsible for operating and maintaining the Facility under this Agreement including, but not limited to, the following, which may include use of outside service providers procured and managed by Licensee:

1. Obtaining occupancy and evacuation plan approvals with the City and any other authority having jurisdiction.

2. Security.

3. Food service for persons needing TASS and isolation services and care and staff.

4. Medical supplies and equipment.

5. Custodial services.

6. Transportation.

7. Furniture requirements.

8. Wireless network.

c. Facility Maintenance, Operations, and Costs

i. Licensee is responsible for all Facility maintenance.

ii. All costs and expenses will be borne by Licensee, including Licensee's third-party service providers, except where agreed upon by the CRP.

iii. Licensee shall have access to and use of the Facility during the following times and dates: 24 hours per day, seven (7) days per week throughout the duration of this agreement. It is the responsibility of Licensee to ensure that its use of the Facility does not interfere or impinge on the rights of others in the local community, including neighboring residential and business districts.

iv. The Facility is being used by Licensee on an "as is" basis. Licensee assumes all risk in the event of damage to person or property, loss by theft or otherwise of any and all property specific to Licensee's use of Facility, and no claim shall be made or against the City because of such losses for any reason whatsoever except if and only to the extent caused by the gross negligence or willful misconduct of the City.

v. Licensee is responsible for providing 24/7 security personnel and other related protections such as fencing and lighting, as appropriate, in coordination with the City.

vi. City and Licensee shall agree on a complete safety and security plan, including number of personnel, location of equipment, noise levels, lighting (including direction), so as not to disturb adjacent residential neighborhoods. Licensee agrees that all lighting will be faced away from nearby residential areas. The City may request that lighting be relocated due to environmental or other concerns of the community.

vii. The City may require additional police officers to monitor Licensee's Facilities use, as determined solely by the City. In that event, the cost of such monitoring shall be borne by Licensee.

viii. No amplified music, loud equipment, construction or explosions of any kind may be used without City's written permission. If permission is granted in writing, volume levels must adhere to decibel levels established using established noise ordinances adopted by the County of Orange.

ix. Licensee agrees to abide by all applicable state and federal laws and local ordinances, and City policies, rules and regulations, including all government issued social distancing guidance related to the containment of COVID-19.

x. Licensee is responsible for the safe storage and disposal of all waste and other trash affiliated with its Facility use. Licensee shall not dump, misuse, or dispose of any liquids or hazardous materials within the Facility.

xi. Licensee shall not bring onto City property, nor allow others associated with Licensee's use, to bring on City property, any hazardous chemicals or other potentially hazardous materials without written permission from the City. It is the sole and independent responsibility of Licensee to obtain any permit or other form of required approval from federal, state, county, city or other local entity, as required by applicable law. Licensee shall be responsible for any fees, charges, or other costs associated with these requirements.

xii. Licensee understands and agrees City personnel shall have the right to enter the Facility or any part thereof for any purpose and at any time, at its sole discretion except that patient care and isolation areas shall only accessed upon showing of good cause or otherwise as part of fulfilling obligations under this Agreement. City personnel shall give reasonable notice when practicable.

xiii. The City reserves the right to eject or cause to be ejected and removed from City property any person whose conduct violates the terms of this Agreement, including federal, state, local law or regulation; provided, however, prior to such ejection, Licensee shall be provided with notice and a reasonable opportunity to cure, if safe and practicable under the circumstances.

xiv. Licensee will obtain all applicable federal, state, county, and local permits (e.g., fire, health and safety, and environmental). Any work requiring permits may not commence until permits are issued.

d. Licensee shall abide by all coronavirus / COVID-19-related public health orders, guidance's, best reasonable practices and other appropriate measures applicable to operations and activities under this Agreement. Licensee shall be responsible for ensuring all of Licensee's employees, agents, invitees and third-party users follow all applicable public health orders, guidance's, best reasonable practices and other appropriate measures related to coronavirus/COVID-19.

e. **Sensitive Patient Information and Confidentiality**. During the course of Licensee's use of the Facility, City employees, staff, and other agents may encounter patients, persons, or information entitled to certain privacy and health-related protections. Such information may include personal data, written records, and/or recognition of patient identities. City will take necessary steps to ensure that City's employees, staff, and agents do not improperly or unlawfully share confidential information. On a regular basis throughout the term of this Agreement, City will advise its employees who City has reason to believe may encounter confidential, medical information about patients' at the Facility, that this sensitive information is private and should be treated as such and should not be shared outside of the workplace, for any other reason than on a work-related need to know basis.

5. FACILITY CONDITION

a. Licensee warrants that, upon termination of this Agreement, it will relinquish ownership of all improvements made on the Facility to the City, including the SPRUNG structure.

b. Licensee has inspected the Facility and has independently determined that the Facility is suitable for its intended uses. The City makes no representations concerning the Facility and the suitability for the uses or purposes intended by Licensee.

c. The City assumes no liability for damages caused by power outages, water usage and/or availability, blackouts, equipment failure, acts of god, or any other circumstances beyond the City's control.

d. Facility Decontamination

i. Licensee will perform industry standard decontamination of the Facility prior to its return to the City. The parties will meet and confer to determine the appropriate scope and type of decontamination efforts necessary given the nature of Licensee's emergency operations and use in the Facility.

e. City agrees that in no event shall Licensee be liable for any alleged damages to reputation due to the use of the Facility by Licensee under this Agreement.

6. FEMA REQUIRED PROVISIONS

a. FEMA. This Agreement may be funded in part or entirely by financial assistance from the Federal Emergency Management Agency. This Agreement is conditional and contingent on incorporation of FEMA-required terms and conditions, including, but not limited to 44 C.F.R. § 206.326 and 2 C.F.R. Pt. 2, Appendix II, and such additional terms and conditions as set forth in Attachment B, attached hereto and incorporated by this reference. The Parties further agree to amend this Agreement to extent necessary to conform to any applicable FEMA required terms and conditions.

8. COST RECOVERY BY CITY

a. Licensee agrees to reimburse the City for all services provided by the City during Licensee's use of the Facility.

b. Licensee will reimburse City for all direct costs incurred for provision of services in support of Licensee's use. City will not charge for overhead or any other cost that would have been incurred regardless of Licensee's operations and use of Facility.

9. TERM AND TERMINATION

a. Licensee shall be permitted to use the Facility commencing on execution of this Agreement for as long as the State of Emergency, Local Emergency, and/or Local Health Emergency , as specified in the Agreement's Recitals, continue in effect, and as needed to reasonably transition the use and operation of the Facility to the City.

b. The Parties may terminate this Agreement for any reason upon ninety (90) business-day advance written notice to Licensee.

c. The City may immediately terminate this Agreement for cause should Licensee fail to perform as herein provided, and will provide the notice set forth above. Licensee shall have three (3) business days to cure, or such other reasonable time given the nature of the breach and cure. If the breach is not cured to the City's satisfaction, this Agreement will terminate on the fifth business day after the period for cure as stated in City's initial notice of breach.

d. **Official Orders**. Licensee and City mutually acknowledge that local, state, or federal authorities may issue official orders related to the COVID-19 emergency and pandemic, or take other official actions, subsequent to the execution of this Agreement that Parties to this Agreement cannot presently predict. Licensee and City mutually acknowledge and agree that this Agreement shall be subject to the provisions of any such official action or order, particularly but not limited to Executive Orders of the Governor of the State of California and Orders of the County Public Health Officer, and the like ("Official Actions"), and if the provisions of any such Official Actions materially impact the terms of this Agreement, the provisions of those Official Actions shall govern to the degree that each Party is legally obligated to do so. In the event that such Official Actions make occupancy and/or use of the Facility by Licensee under this Agreement illegal, unlawful, or contrary to public policy, either party shall provide written notice to the other in the manner described herein, and Licensee and City mutually agree that this Agreement shall terminate as of the date of that Official Action, at no penalty to Licensee or City.

10. NO ASSIGNMENT OR SUBLETTING.

Licensee shall not assign or sublet, in whole or in part, the benefits and rights, in whole or in part, granted in this Agreement without the expressed written consent of the City.

11. INDEMNIFICATION.

Licensee shall hold harmless, defend, and indemnify the City, and their officers, employees, representatives, volunteers, and agents, and each of them (collectively the Indemnified Parties), from any and all known or unforeseen losses, liabilities, lawsuits, claims, damages, losses, causes of action and demands, injuries or death of persons, and/or for damages to any City Facilities, and all costs and expense incurred in connection therewith, including, but not limited to attorneys' fees and costs resulting from or in any manner arising out of or in connection with any act or omission on the part of Licensee, its officers, agents, employees, and volunteers, arising out of, resulting from, or related to, this Agreement, Licensee's use of the Facility, or operations conducted by or on behalf of Licensee, except, to the extent required by law and excluding liability due to City's gross negligence or intentional wrongdoing.

12. INSURANCE

a. Licensee shall at its own expense obtain and maintain primary insurance during the term of this Agreement with limits not less than:

General Liability	$ 5,000,000	(per occurrence)
General Aggregate	$ 10,000,000	
Workers' Compensation	As required under California State Law	
Employer Liability	$ 1,000,000	
Business Automobile Liability	$ 1,000,000	(for owned, scheduled, non-owned, or hired automobiles)

b. Licensee shall furnish to the City a Certificate of Insurance with an underwriter's additional insured endorsement that provides proof that insurance is maintained at the above limits. The insurer's rating must be AM Best – A VII or higher.

c. The Certificates of Insurance and all endorsements shall be provided by the Licensee to the City prior to commencement of Licensee's use of the Facility. Failure to provide the requested insurance information within prescribed time limits may result in cancellation of the use.

13. NOTICES

All notices herein required to be given, or which may be given, or which may be given by either Party to the other, shall be deemed to have been fully given when made in writing and deposited in the United States mail or by electronic mail, and addressed as herein provided. Notice to the Parties shall be addressed as set forth below:

Licensee:
Jason Austin, Director
Office of Care Coordination
Orange County Health Care Agency
405 West 5th Street
Santa Ana, CA 92701
JAustin@ochca.com

City:
Oliver Chi, City Manager
City Manager's Office
City of Huntington Beach
2000 Main Street
Huntington Beach, CA 92648
oliver.chi@surfcity-hb.org

14. GENERAL PROVISIONS

a. This Agreement constitutes the entire agreement between the parties with respect to its subject matter and constitutes and supersedes all prior agreements, representations and understandings of the parties, written or oral, with regard to this same subject matter.

b. No alteration or variation of this Agreement shall be valid unless made in writing and signed by the parties, and no oral understanding, course of dealing, or agreement not incorporated in writing in the Agreement shall be binding on any of the parties.

c. This Agreement shall be governed by the laws of the State of California, except to the extent preempted by federal law. Any action brought by any party hereto shall be brought in the Superior Court in the County of Orange, California.

d. Nothing in this Agreement shall be construed as creating any rights or benefits to any third parties.

e. The provisions of this Agreement shall extend to and be binding upon and inure to the benefit of the heirs, executors, administrators, successors and assigns to the parties hereto.

f. Licensee shall make no payments or gratuities of any kind to any City representatives, employees, agents, auxiliaries, or affiliates. Failure to comply with this clause will be considered a breach of this Agreement and subject to immediate termination of this Agreement, at City's sole discretion.

g. Licensee hereby certifies compliance with California Government Code sections 8355- 8357 in matters relating to providing a drug-free workplace.

h. The City assumes no liability or responsibility for loss or damages to any equipment left on City premises, excluding any loss caused by the negligence or willful misconduct of the City.

i. Prior to Facilities use, Licensee shall provide a list of all subcontractors providing good or services for Licensee's Facilities use.

j. **Emergencies**. All emergencies shall be reported to the City by calling 911. Non-emergency matters can be reported to the City by calling 714-960-8811.

k. Quiet Possession. City agrees that the Licensee, while keeping and performing the covenants herein contained, shall at all times during the existence of this Agreement, peaceably and quietly have, hold, and enjoy the Facility without suit, trouble, or hindrance from the City.

l. During the term of this Agreement, both Parties shall comply with all applicable laws, regulations and City policies regarding the Facility, the services to be rendered, and performance under this Agreement. Neither Party shall deny benefits to any person on the basis of religion, color, ethnic group identification, sex, age, physical or mental disability, nor shall they discriminate unlawfully against any employee or applicant for employment because of race, religion, color, national origin, ancestry, physical handicap, mental disability, medical condition, marital status, age, sex, or any other protected or prohibited basis. Both parties shall ensure that the evaluation and treatment of employees and applicants for employment are free of such discrimination.

m. Time of Essence; Binding on Successors. Time is of the essence of this Agreement, and the terms and provisions of this Agreement shall extend to and be binding upon and inure to the benefit of the heirs, executors, administrators, successors, and assigns to the respective Parties hereto. All of the parties hereto shall be jointly and severally liable hereunder.

n. If any section or provision of this Agreement is held illegal, unenforceable or in conflict with any law by a court of competent jurisdiction, such section or provision shall be deemed severed and the validity of the remainder of this Agreement shall not be affected.

o. No Oral Agreements. It is mutually understood and agreed that no alterations or variations of the terms of this Agreement shall be valid unless made in writing and signed by the Parties hereto, and that no oral understanding or agreement not incorporated herein, shall be binding on any of the Parties hereto.

p. Any conflict between the documents contained herein and the terms and conditions of the agreement prevails over any other documents incorporated.

q. Hazardous Substances. With regard to its use of the Facility, Licensee agrees that it will comply with all applicable laws pertaining to the use, storage, transportation, and disposal of any hazardous substance as that term is defined in such applicable law. In the event City or any of its affiliates, successors, principals, employees, or agents should incur any liability, cost, or expense, including attorney's fees and costs, as a result of the Licensee's illegal or alleged illegal use, storage, transportation, or disposal of any hazardous substance at or on the Facility, including any petroleum derivative, the Licensee shall indemnify, defend, and hold harmless any of these individuals against such liability. Where the Licensee is found to be in breach of this provision due to the issuance or a government order directing the Licensee to cease and desist any illegal action in connection with a hazardous substance, or to remediate a contaminated condition caused by the Licensee or any person acting under the Licensee’s direct control and authority, Licensee shall be responsible for all costs and expenses of complying with such order, including any and all expenses imposed on or incurred by the City in connection with or in response to such government order. Notwithstanding, Licensee shall have no liability during or after the term of this Agreement in connect with any contamination which pre-existed Licensee’s use or occupancy under this Agreement.

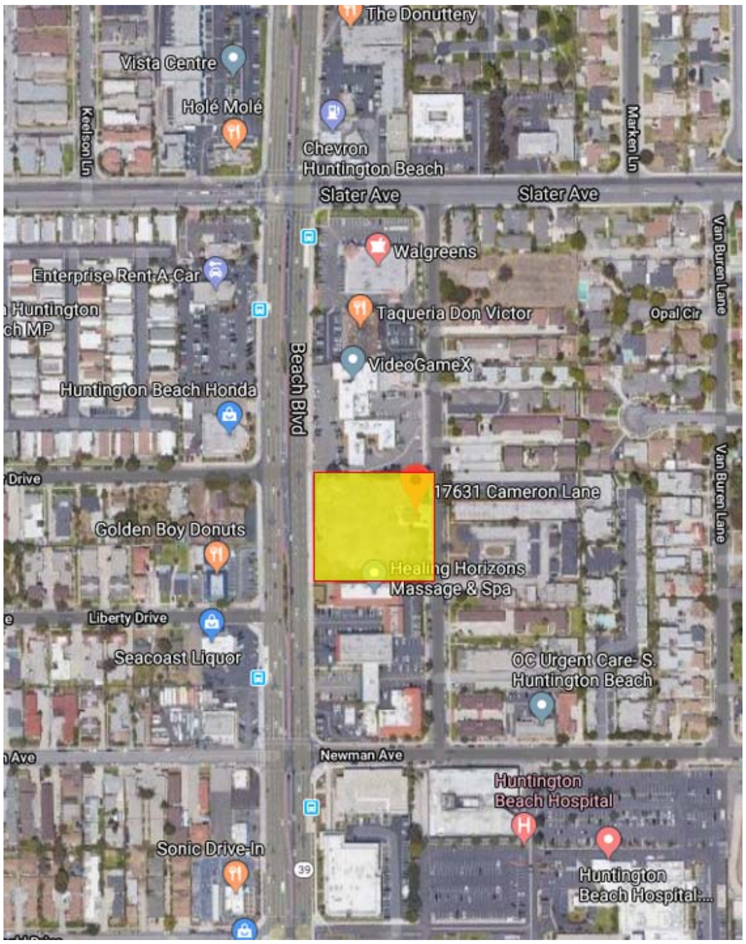
IN WITNESS THEREOF, the parties have executed this Agreement effective as of the date stated above.

COUNTY OF ORANGE	THE CITY OF HUNTINGTON BEACH
By ____________________________	By ____________________________
Name _________________________	Name _________________________
Title ___________________________	Title ___________________________

ATTACHMENT A
FACILITY DESCRIPTION

1. Facility Description

- **a.** Name: Cameron Lane
- **b.** Address: 17631 Cameron Lane, Huntington Beach, CA 92647
- **c.** APN: 167-472-08
- **d.** Description: Approximately 34,189 square feet of vacant land
- **e.** Location Map:



Attachment B
FEDERAL PROVISIONS

To the extent applicable, a Party to this Agreement shall comply with the following provisions.

I. DEFINITIONS

A. **Government** means the United States of America and any executive department or agency thereof.

B. **FEMA** means the Federal Emergency Management Agency.

C. **Third Party Subcontract** means a subcontract at any tier entered into by Party or subcontractor, financed in whole or in part with Federal assistance originally derived from the Federal Emergency Management Agency.

II. FEDERAL CHANGES

A. Party shall at all times comply with all applicable regulations, policies, procedures, and FEMA Directives as they may be amended or promulgated from time to time during the term of this Agreement, including but not limited to those requirements of 2 CFR 200.317 through 200.326 and more fully set forth in Appendix II to Part 200—Contract Provisions for non–Federal Entity Contracts Under Federal Awards, which is included herein by reference. Party's failure to so comply shall constitute a material breach of this contract.

B. The Party agrees to include the above clause in each third party subcontract financed in whole or in part with Federal assistance provided by FEMA. It is further agreed that the clause shall not be modified, except to identify the subcontractor who will be subject to its provisions.

III. ACCESS TO RECORDS

A. The Party agrees to provide the County, FEMA, the Comptroller General of the United States or any their authorized representatives access to any books, documents, papers, and records of the Party which are directly pertinent to this Agreement for the purposes of making audits, examinations, excerpts, and transcriptions.

B. The Party agrees to permit any of the foregoing parties to reproduce by any means whatsoever or to copy excerpts and transcriptions as reasonably needed.

C. The Party agrees to maintain all books, records, accounts, and reports required under this Agreement for a period of not less than three years after the later of: (a) the date of termination or expiration of this Agreement or (b) the date County makes final payment under this Agreement, except in the event of litigation or settlement of claims arising from the performance of this Agreement, in which case, Party agrees to maintain same until the County, FEMA, the Comptroller General, or any of their duly authorized representatives, have disposed of all such litigation, appeals, claims, or exceptions related thereto.

IV. DEBARMENT AND SUSPENSION

A. This Agreement is a covered transaction for purposes of 2 C.F.R. pt. 180 and 2 C.F.R. pt. 3000. As such the Party is required to verify that none of the Party, its principals (defined at 2 C.F.R. § 180.995), or its affiliates (defined at 2 C.F.R. § 180.905) are excluded (defined at 2 C.F.R. § 180.940) or disqualified (defined at 2 C.F.R. § 180.935).

B. Party represents and warrants that it is not debarred, suspended, or otherwise excluded from or ineligible for participation in Federal assistance programs under Executive Order 12549, "Debarment and Suspension" or on the USEPA's List of Violating Facilities. Party agrees that neither Party nor any of its third party subcontractor shall enter into any third party subcontracts for any of the work under this Agreement with a third party subcontractor who is debarred, suspended, or otherwise excluded from or ineligible for participation in Federal assistance programs under executive Order 12549 or on the USEPA's List of Violating Facilities. Gov. Code § 4477.

C. The Party must comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C and must include a requirement to comply with these regulations in any lower tier covered transaction it enters into. Party agrees to the provisions of Attachment 1, Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion—Lower Tier Covered Transactions, attached hereto and incorporated herein. For purposes of this Agreement and Attachment 1, Party is the "prospective lower tier participant."

D. The Party agrees to include paragraphs A and B above in each third party subcontract financed in whole or in part with Federal assistance provided by FEMA. It is further agreed that the paragraphs shall not be modified, except to identify the subcontractor who will be subject to its provisions.

E. This certification is a material representation of fact relied upon by County. If it is later determined that the Party did not comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C, in addition to remedies available to the State of California, the County, and the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment.

F. The bidder or proposer agrees to comply with the requirements of 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions."

V. NO FEDERAL GOVERNMENT OBLIGATIONS TO PARTY

A. The County and Party acknowledge and agree that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Government, the Government is not a party to this contract and shall not be subject to any obligations or liabilities to the County, Party, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.

B. The Party agrees to include the above clause in each third party subcontract financed in whole or in part with Federal assistance provided by FEMA. It is further agreed that the clause shall not be modified, except to identify the subcontractor who will be subject to its provisions.

VI. EQUAL EMPLOYMENT OPPORTUNITY COMPLIANCE (applicable to all construction contracts awarded meeting the definition of "federally assisted construction contract" under 41 CFR 61-1.3)

Party agrees to comply with Executive Order 11246 of September 24, 1965, entitled "Equal Employment Opportunity," as amended by Executive Order 11375 of October 13, 1967, and as supplemented in Department of Labor regulations (41 CFR Part 60). 41 CFR 60.14 is hereby incorporated by reference.

A. Partys and subcontractors shall not unlawfully discriminate, harass, or allow harassment against any employee or applicant for employment because of sex, race, color, ancestry, religious creed, national origin, sexual orientation, physical disability (including HIV and AIDS), mental disability, medical condition (cancer), age (over 40), marital status, and denial of family care leave.

B. Party, and subcontractor shall ensure that the evaluation and treatment of their employees and applicants for employment are free from such discrimination and harassment.

C. Party and subcontractors shall comply with the provisions of the Fair Employment and Housing Act (Gov. Code, § 12990 (a-f) et seq.) and the applicable regulations promulgated thereunder (California Code of Regulations, Title 2, Section 7285 et seq.). The applicable regulations of the Fair Employment and Housing Commission implementing Government Code Section 12990 (a-f), set forth in Chapter 5 of Division 4 of Title 2 of the California Code of Regulations, are incorporated into this Agreement by reference and made a part hereof as if set forth in full.

D. Partys, and subcontractors shall give written notice of their obligations under this clause to labor organizations with which they have a collective bargaining or other Agreement.

VII. ANTI-KICKBACK ACT COMPLIANCE (applicable to all contracts and subgrants for construction or repair; 44 CFR §13.36(i)(4))

Party agrees to comply with the Copeland “Anti-Kickback” Act (18 U.S.C. 874) as supplemented in Department of Labor regulations (29 CFR Part 3).

VIII. DAVIS-BACON ACT COMPLIANCE (applicable to construction contracts in excess of $2,000 awarded by grantees and subgrantees when required by Federal grant program legislation;)

To the extent required by any Federal grant programs applicable to expected funding or reimbursement of County’s expenses incurred in connection with the services provided under this Agreement, Party agrees to comply with the Davis-Bacon Act (40 U.S.C. 276a to 276a–7) as supplemented by Department of Labor regulations (29 CFR Part 5) as set forth below. These requirements are in addition to the requirements set forth in Section 19(b) of the Agreement.

A. The Party shall be bound to the provisions of the Davis-Bacon Act, and agrees to be bound by all the provisions of Labor Code section 1771 regarding prevailing wages. All labor on this project shall be paid neither less than the greater of the minimum wage rates established by the U.S. Secretary of Labor (Federal Wage Rates), or by the State of California Director of Department of Industrial Relations (State Wage Rates). Current DIR requirements may be found at http://www.dir.ca.gov/lcp.asp.

B. The general prevailing wage rates may be accessed at the Department of Labor Home Page at www.wdol.gov. Under the Davis Bacon heading, click on “Selecting DBA WDs.” In the drop down menu for State, select, “California.” In the drop down menu for County, select “Sonoma.” In the drop down menu for Construction Type, make the appropriate selection. Then, click Search.

IX. CONTRACT WORK HOURS AND SAFETY STANDARDS (applicable to all contracts in excess of $100,000 that involve the employment of mechanics or laborers, but not to purchases of supplies or materials or articles ordinarily available on the open market, or contracts for transportation or transmission of intelligence)

A. **Compliance:** Party agrees that it shall comply with Sections 103 and 107 of the Contract Work Hours and Safety Standards Act (40 U.S.C. 327–330) as supplemented by Department of Labor regulations (29 CFR Part 5), which are incorporated herein.

B. **Overtime:** No Party or subcontractor contracting for any part of the work under this Agreement which may require or involve the employment of laborers or mechanics shall require or permit any such laborer or mechanic in any workweek in which he or she is employed on such work to work in excess of forty hours in such workweek unless such laborer or mechanic receives compensation at a rate not less than one and one-half times the basic rate of pay for all hours worked in excess of forty hours in such workweek.

C. **Violation; liability for unpaid wages; liquidated damages:** In the event of any violation of the provisions of Paragraph B, the Party and any subcontractor responsible therefore shall be liable to any affected employee for his unpaid wages. In additions, such Party and subcontractor shall be liable to the United States for liquidated damages. Such liquidated damages shall be computed with respect to each individual laborer or mechanic employed in violation of the provisions of paragraph B in the sum of $10 for each calendar day on which such employee was required or permitted to be employed on such work in excess of eight hours or in excess of his standard workweek of forty hours without payment of the overtime wages required by paragraph B.

D. **Withholding for unpaid wages and liquidated damages:** The County shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld, from any moneys payable on account of work performed by the Party or subcontractor under any such contract or any other Federal contract with the same prime Party, or any other federally-assisted contract subject to the Contract Work Hours and Safety Standards Act, which is held by the same prime Party, such sums as may be determined to be necessary to satisfy any liabilities of such Party or subcontractor for unpaid wages and liquidated damages as provided in the clause set for in paragraph C of this section.

E. **Subcontracts:** The Party or subcontractor shall insert in any subcontracts the clauses set forth in paragraphs A through D of this section and also a clause requiring the subcontractor to include these clauses in any lower tier subcontracts. The prime Party shall be responsible for compliance by any subcontractor or lower tier subcontractor with the clauses set forth in paragraphs A through D of this section.

X. NOTICE OF REPORTING REQUIREMENTS

A. Party acknowledges that it has read and understands the reporting requirements of FEMA in Part III of Chapter 11 of the United States Department of Justice's Office of Justice Programs Financial Guide, and agrees to comply with any such applicable requirements.

B. The Party agrees to include the above clause in each third party subcontract financed in whole or in part with Federal assistance provided by FEMA. It is further agreed that the clause shall not be modified, except to identify the subParty who will be subject to its provisions.

XI. NOTICE OF REQUIREMENTS PERTAINING TO COPYRIGHTS

A. Party agrees that FEMA shall have a royalty-free, nonexclusive, and irrevocable license to reproduce, publish or otherwise use, and to authorize others to use, for government purposes:

1) The copyright in any work developed with the assistance of funds provided under this Agreement;
2) Any rights of copyright to which Party purchases ownership with the assistance of funds provided under this Agreement.

B. The Party agrees to include paragraph A above in each third party subcontract financed in whole or in part with Federal assistance provided by FEMA. It is further agreed that the clause shall not be modified, except to identify the subParty who will be subject to its provisions.

XII. PATENT RIGHTS (applicable to contracts for experimental, research, or development projects financed by FEMA; 44 CFR §13.36(i)(8))

A. General. If any invention, improvement, or discovery is conceived or first actually reduced to practice in the course of or under this Agreement, and that invention, improvement, or discovery is patentable under the laws of the United States of America or any foreign country, the County and Party agree to take actions necessary to provide immediate notice and a detailed report to FEMA.

- **B.** Unless the Government later makes a contrary determination in writing, irrespective of Party's status (a large business, small business, state government or state instrumentality, local government, nonprofit organization, institution of higher education, individual), the County and Party agree to take the necessary actions to provide, through FEMA, those rights in that invention due the Federal Government as described in U.S. Department of Commerce regulations, “Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements,” 37 CFR, Part 401.
- **C.** The Party agrees to include paragraphs A and B above in each third party subcontract for experimental, developmental, or research work financed in whole or in part with Federal assistance provided by FEMA.

XIII. ENERGY CONSERVATION REQUIREMENTS

- **A.** The Party agrees to comply with mandatory standards and policies relating to energy efficiency which are contained in the state energy conservation plan issued in compliance with the Energy Policy and Conservation Act (42 USC 6201).
- **B.** The Party agrees to include paragraph A above in each third party subcontract financed in whole or in part with Federal assistance provided by FEMA. It is further agreed that the clause shall not be modified, except to identify the subParty who will be subject to its provisions.

XIV. CLEAN AIR AND WATER REQUIREMENTS (applicable to all contracts and subcontracts in excess $100,000, including indefinite quantities where the amount is expected to exceed $100,000 in any year)

- **A.** Party agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act (42 U.S.C. 7401-7671q) and the Federal Water Pollution Control Act as amended (33 U.S.C. 1251-1387), and will report violations to FEMA and the Regional Office of the Environmental Protection Agency (EPA).
- **B.** Party agrees to report each violation of these requirements to the County and understands and agrees that the County will, in turn, report each violation as required to assure notification to FEMA and the appropriate EPA regional office.
- **C.** The Party agrees to include paragraph A and B above in each third party subcontract exceeding $100,000 financed in whole or in part with Federal assistance provided by FEMA.

XV. TERMINATION FOR CONVENIENCE OF COUNTY (applicable to all contracts in excess of $10,000)

See Paragraphs 10 and 11 of the Agreement.

XVI. TERMINATION FOR DEFAULT (applicable to all contracts in excess of $10,000)

Party’s failure to perform or observe any term, covenant or condition of this Agreement shall constitute an event of default under this Agreement. See Paragraphs Termination Section of the Agreement.

XVII. LOBBYING (Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352 (as amended).)

- **A.** Party shall not use or pay any funds received under this Agreement to influence or attempt to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any

Federal contract, the making of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

B. Party agrees to the provisions of Attachment 2, Certification Regarding Lobbying, attached hereto and incorporated herein (applicable for contracts or subcontracts in excess of $100,000).

C. Party agrees to include paragraphs A and B above in each third party subcontract financed in whole or in part with Federal assistance provided by FEMA. It is further agreed that the clause shall not be modified, except to identify the subParty who will be subject to its provisions.

XVIII. MBE / WBE REQUIREMENTS

The County intends to seek reimbursement of its costs incurred in connection with this project from FEMA. Accordingly, the PARTY shall make every effort to procure Minority and Women's Business Enterprises ("DBEs") through the "Good Faith Effort" process as required in 2 CFR 200.321. Failure to perform the "Good Faith Effort" process and submit the forms listed below with the bid shall be cause for a bid to be rejected as non-responsive and/or be considered as a material breach of the contract.

PRIME PARTY RESPONSIBILITIES

All recipients of this grant funding, as well as their prime Partys and subPartys, must take all affirmative steps to assure that minority firms, women's business enterprises, and labor surplus area firms are used when possible make every effort to solicit bids from eligible DBEs. This information must be documented and reported.

"GOOD FAITH" EFFORT PROCESS

Any public or private entity receiving federal funds must demonstrate that efforts were made to attract MBE/WBEs. The process to attract MBE/WBEs is referred to as the "Good Faith" effort. This effort requires the recipient, prime Party and any subPartys to take the steps listed below to assure that MBE/WBEs are used whenever possible as sources of supplies, construction, equipment, or services. If a PARTY fails to take the steps outlined below shall cause the bid to be rejected as non-responsive and/or be deemed a material breach of the contract.

A. Place qualified small and minority businesses and women's business enterprises on solicitation lists;

B. Assure that small and minority businesses, and women's business enterprises are solicited whenever they are potential sources;

C. Divide total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation by small and minority business, and women's business enterprises;

D. Establish delivery schedules, where the requirement permits, which encourage participation by small and minority business, and women's business enterprises; and

E. Use the services and assistance of the Small Business Administration, and the Minority Business Development Agency of the Department of Commerce.

F. If subcontracts are to be let, Party shall take the affirmative steps listed in 2 CFR 200.321.

XIX. PROCUREMENT OF RECOVERED MATERIALS (2 CFR 200.322)

Party shall comply with Section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act. The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 CFR part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition, where the purchase price of the item exceeds $10,000 or the value of the quantity acquired during the preceding fiscal year exceeded $10,000; procuring solid waste management services in a manner that maximizes energy and resource recovery; and establishing an affirmative procurement program for procurement of recovered materials identified in the EPA guidelines.

XX. INCORPORATION OF UNIFORM ADMINISTRATIVE REQUIREMENTS

The preceding provisions include, in part, certain standard terms and conditions required by FEMA, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by FEMA are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FEMA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. Party shall not perform any act, fail to perform any act, or refuse to comply with any County requests that would cause County to be in violation of the FEMA terms and conditions.

XXI. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS OR RELATED ACTS.

The Party acknowledges that 31 U.S.C. Chap. 38 (Administrative Remedies for False Claims and Statements) applies to the Party's actions pertaining to this contract.

XXII. DHS SEAL, LOGO, AND FLAGS.

The Party shall not use the DHS seal(s), logos, crests, or reproductions of flags or likenesses of DHS agency officials without specific FEMA pre- approval.

Attachment D1

CERTIFICATION REGARDING DEBARMENT, SUSPENSION, INELIGIBILITY AND VOLUNTARY EXCLUSION – LOWER TIER COVERED TRANSACTIONS

(Lower Tier refers to the agency or Party receiving Federal funds, as well as any subPartys that the agency or Party enters into contract with using those funds)

As required by Executive Order 12549, Debarment and Suspension, as defined at 44 CFR Part 17, County may not enter into contract with any entity that is debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded by the Federal Government from participating in transactions involving Federal funds. Party is required to sign the certification below which specifies that neither Party nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded by the Federal agency. It also certifies that Party will not use, directly or indirectly, any of these funds to employ, award contracts to, engage the services of, or fund any Party that is debarred, suspended, or ineligible under 44 CFR Part 17.

Instruction for Certification

1. By signing and submitting this proposal, the prospective lower tier participant is providing the certification set out below.
2. The certification in this clause is a material representation of fact upon which reliance was placed when this transaction was entered into. If it is later determined that the prospective lower tier participant knowingly rendered an erroneous certification, in addition to other remedies available to the Federal Government the department or agency with which this transaction originated may pursue available remedies, including suspension and/or debarment.
3. The prospective lower tier participant shall provide immediate written notice to the person to whom this proposal is submitted if at any time the prospective lower tier participant learns that its certification was erroneous when submitted or had become erroneous by reason of changed circumstances.
4. The terms covered transaction, debarred, suspended, ineligible, lower tier covered transaction, participant, person, primary covered transaction, principal, proposal, and voluntarily excluded, as used in this clause, have the meaning set out in the Definition and Coverage sections of rules implementing Executive Order 12549. You may contact the person to which this proposal is submitted for assistance in obtaining a copy of those regulations.
5. The prospective lower tier participant agrees by submitting this agreement that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is proposed for debarment under 48 CFR Part 9, subpart 9.4, debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency with which this transaction originated.
6. The prospective lower tier participant further agrees by submitting this proposal that it will include this clause titled "Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion-Lower Tier Covered Transaction," without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions.
7. A participant in a covered transaction may rely upon a certification of a prospective participant in

a lower tier covered transaction that it is not proposed for debarment under 48 CFR part 9, subpart 9.4, debarred, suspended, ineligible, or voluntarily excluded from covered transactions, unless it knows that the certification is erroneous. A participant may decide the method and frequency by which it determines the eligibility of its principals. Each participant may, but is not required to, check the List of Parties Excluded from Federal Procurement and Nonprocurement Programs.

8. Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of a participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
9. Except for transactions authorized under paragraph 5 of these instructions, if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is proposed for debarment under 48 CFR part 9, subpart 9.4, suspended, debarred, ineligible, or voluntarily excluded from participation in this transaction originated may pursue available remedies, including suspension and/or debarment.

Certification Regarding Debarment, Suspension, Ineligibility an Voluntary Exclusion – Lower Tier Covered Transactions

1. The prospective lower tier participant certifies, by submission of its proposal, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency.
2. Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this proposal.

____________________________________ ____________________________________

Party Signature Date

Attachment D2

CERTIFICATION REGARDING LOBBYING

Certification for Contracts, Grants, Loans, and Cooperative Agreements

The undersigned certifies, to the best of his or her knowledge and belief, that:

1. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
2. If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.
3. The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loan, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than $10,000 and not more than $100,000 for each such failure.

____ ____

Party Signature Date